

24VECV00061 24VECV00061

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV00061 Hearing Date: July 21, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Sandra Sandoval,

Plaintiffs.

v.

3M Building & Development, Inc., et al.,

¿¿¿

Defendants.

Case Number Department

24VECV00061 107

COURT'S [TENTATIVE]

ORDER RE: ¿

Motion
for an
Order
Setting Aside Default

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.
BACKGROUND

On
May 21, 2023, Plaintiff Sandra Sandoval ("Plaintiff") slipped and fell at 6120 Woodman Ave Van Nuys, CA 91401. (Complaint p. 4.) Plaintiff sustained injuries.
(Complaint p. 4.)

On
January 4, 2024, Plaintiff filed a complaint against Defendants 3M Building & Development, Inc., County of Los Angeles, City of Los Angeles, and Does 1 to 10, alleging causes of action for: (1) general negligence; (2) premises liability; and (3) strict liability.

On
April 2, 2024, Plaintiff filed requests to dismiss Defendant County of Los Angeles and the third cause of action for strict liability, and Defendant County of Los Angeles and the third cause of action were dismissed.

On
April 22, 2024, Cross-Complainant City of Los Angeles filed a cross-complaint against Cross-Defendants 3M Building & Development, Inc., and Roes 1 to 10, alleging causes of action for: (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On
May 23, 2024, Plaintiff filed an amendment to complaint identifying Doe 1 as Casa Woodman, LLC.

On
May 23, 2024, Cross-Complainant 3M Building & Development, Inc. filed a

cross-complaint against Cross-Defendants City of Los Angeles and Moes 1 through 20, alleging causes of action for: (1) equitable indemnity; (2) contribution; (3) apportionment of fault; and (4) declaratory relief.

On

January 22, 2025, the clerk entered default as to Defendant Casa Woodman, LLC.

On

July 10, 2025, Plaintiff filed a request to dismiss Defendant 3M Building & Development, Inc. and that Defendant was dismissed.

On

August 8, 2025, Cross-Complainant 3M Building & Development, Inc. filed a request to dismiss its cross-complaint, and the cross-complaint was dismissed.

On

August 11, 2025, Cross-Complainant City of Los Angeles filed a request to dismiss its cross-complaint, and the cross-complaint was dismissed.

On

October 31, 2025, Plaintiff filed an amendment to complaint identifying Doe 2 as Yehezkilof Management LLC, d/b/a Casa Woodman, LLC.

On

November 12, 2025, Plaintiff filed a request to dismiss Defendant City of Los Angeles, and that Defendant was dismissed.

On

April 21, 2026, Plaintiff filed a request to dismiss Defendant Doe 2 Yehezkilof Management LLC, d/b/a Casa Woodman, LLC, and Does 3 to 10, and those Defendants were dismissed.

On

April 22, 2026, Plaintiff filed a default judgment application.

On

June 18, 2026, Defendant Casa Woodman, LLC ("Defendant") filed a motion for order setting aside default (the "Motion"). As of July 14, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

Code

of Civil Procedure section 473, subdivision (d) states “[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

“Compliance

with the statutory procedures for service of process is essential to establish personal jurisdiction . . . Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.” (Sakaguchi v. Sakaguchi (2009) 173 Cal.App.4th 852, 858, brackets removed.)

The

party must file the motion within a “reasonable time” after entry of the judgment. (See California Capital Ins. Co. v. Hoehn (2024) 17 Cal.5th 207, 212, 225-226.)

III.

DISCUSSION

Defendant

moves to set aside the default on two grounds. First, Defendant argues the court has no jurisdiction over Defendant because Plaintiff filed a false proof of service. (Motion p. 5.) Second, Defendant argues that the default was the result of mistake, inadvertence, surprise, or excusable neglect because “none of Defendant’s representatives were personally served with the Summons or Complaint, and the only contact alleged did not occur.” (Motion pp. 6-7.) Defendant notes “Plaintiff attempted to serve Defendant through a disfavored means that would’ve resulted, at best, in a packet sitting in a mailbox.” (Motion p. 7.)

Defendant

argues the default should be set aside because the process server’s declaration indicated the process server attempted to contact Erez Yeheskiloff and “appears

to have mistakenly believed that Erez Yeheskiloff was a woman and that the person on the other end of the telephone conversation was Erez Yeheskiloff.” (Motion p. 4, original underlining.) Defendant notes “Plaintiff quite obviously did not suffer from the same mistaken belief because Plaintiff’s application referred to Erez Yeheskiloff as ‘Mr. Yehezki^lof.’” (Motion p. 3, original underlining and italics.)

Yeheskiloff

is Defendant’s officer and agent for service of process. (Yeheskiloff Declaration ¶ 1.) Yeheskiloff states he is “informed and believe that Plaintiff . . . alleged in her Application for Authorization to Serve Defendant by Delivery to the Secretary of State . . . that I answered a telephone call on September 11, 2024, from a process server, that I refused to provide my current address to the process server, and that I was ‘evading service.’” (Yeheskiloff Declaration ¶ 3.) Yeheskiloff states he has no memory of having received the phone call. (Yeheskiloff Declaration ¶ 4.) Finally, Yeheskiloff states he reviewed the process server’s report, the report does not disclose what phone number was called, and the report indicates the process server spoke to a woman. (Yeheskiloff Declaration ¶ 5.) Yeheskiloff states he is a man. (Yeheskiloff ¶ 5.)

Plaintiff

filed an application to serve Defendant by delivery to the Secretary of State under California Corporations Code section 17701.16, subdivision (c) (the “Application”).

California

Corporations Code section 17701.16, subdivision (c) states:

If

an agent for service of process has resigned and has not been replaced or if the designated agent cannot with reasonable diligence be found at the address designated for personal delivery of the process, and it is shown by affidavit to the satisfaction of the court that process against a limited liability company or foreign limited liability company cannot be served with reasonable diligence upon the designated agent by hand in the manner provided in Section 415.10, subdivision (a) of Section 415.20, or subdivision (a) of Section 415.30 of the Code of Civil Procedure, the court may make an order that the service shall be made upon a domestic limited liability company or upon a registered foreign limited liability company by delivering by hand to

the Secretary of State, or to any person employed in the Secretary of State's office in the capacity of assistant or deputy, one copy of the process for each defendant to be served, together with a copy of the order authorizing the service. Service in this manner shall be deemed complete on the 10th day after delivery of the process to the Secretary of State.

Plaintiff's

Application was supported by a declaration by Plaintiff's counsel. (Habashy Declaration ¶ 1.) Plaintiff's counsel stated Yeheskiloff could not be located and service could not be effectuated at the listed address. (Habashy Declaration ¶ 8.) Plaintiff's counsel stated a process server attempted to effectuate service on Yeheskiloff on five separate dates between June 3, 2024, and July 9, 2024. (Habashy Declaration ¶ 8(a).) During two of those attempts, "an occupant at the indicated address stated to the process server that the occupant has been renting the house for one month, and that Mr. Yehezkiel is unknown to her." (Habashy Declaration ¶ 8(b).) Plaintiff's counsel obtained a Lexis person report for Yeheskiloff that listed two other addresses. (Habashy Declaration ¶ 8(c).) Plaintiff's counsel states process servers attempted to serve Yeheskiloff at the two addresses, but determined the addresses were invalid. (Habashy Declaration ¶ 8(d)-(e).) Plaintiff's counsel states that on the September 11, 2024, Non-Service Report, the process server stated "I then called the phone number for Erez Yehezkiel who stated that she no longer lives at this address. She refused to provide her current address." (Habashy Declaration ¶ 8(f) (original italics).) Plaintiff's counsel stated that "[f]his indicates Mr. Yehezkiel is evading service." (Habashy Declaration ¶ 8(f), original bolding, underlining, and italics.) Plaintiff's counsel stated Defendant's other manager or member, Efi Meirson, also could not be located. (Habashy Declaration ¶ 9.)

Plaintiff's

Application was supported, in part, by counsel's declaration stating further efforts to locate Yeheskiloff would be fruitless because Yeheskiloff was evading service of process. The process server's declaration stated:

Arrived

at location . Waited to gain access to the apartment complex. No answer at the door. No lights on. Went down to the parking garage, spot was empty. On their mailbox #201 there were postings from FedEx and UPS that they've missed the delivery. Spoke with neighbor who did not know the subject. I then called the phone number for Erez Yehezkiel who stated that she no longer lives at this

address. She refused to provide her current address. This is a wrong address for service.

(Application

Ex. F pdf p. 76.) Plaintiff's counsel's declaration supporting the Application stated:

Crucially,

the September 11, 2024 Non-Service Report, Ex. "F," states the following from the process server: "I then called the phone number for Erez Yehezkielof who stated that she no longer lives at this address. She refused to provide her current address." This indicates that Mr. Yehezkielof is evading service.

(Habashy

Declaration ¶ 8(f), original italics, bolding, and underlining.) Plaintiff's counsel further stated:

It

appears that it would be fruitless to attempt yet further attempts to locate an address for Mr. Yehezkielof, because she is intentionally evading service, as described above (Ex.F). Accordingly, there would be no benefit to attempts to locate him using social media, reaching out via friends and relatives, or the like.

(Habashy

Declaration ¶ 11.)

Yehezkiloff

submits a declaration supporting the Motion stating he is a man and has no memory of answering a phone call on September 11, 2024, from a process server. (Yehezkiloff Declaration ¶¶ 3-5.)

The

court understands Plaintiff's counsel undertook other efforts to accomplish service of process, such as looking for other addresses. But Plaintiff's counsel's declaration emphasized that additional efforts to locate Yehezkiloff would be fruitless because, based on the process server's September 11, 2024, phone call, Yehezkiloff was evading service of process. (Habashy Declaration ¶ 11.) Yehezkiloff's declaration calls into question whether the process server spoke to Yehezkiloff

on September 11, 2024. Without such evidence, the court is not persuaded Defendant's designated agent for service of process could not, with reasonable diligence, have been served by hand.

Default

was entered against Defendant on January 22, 2025. Defendant filed the Motion on June 18, 2026. It is unclear when Defendant learned of the entry of default. However, Plaintiff filed no opposition arguing Defendant failed to file the Motion within a reasonable time. As such, the court concludes Defendant filed the Motion within a reasonable time after entry of default.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is granted. Defendant is directed to file the proposed answer within ten (10) days of this order.

Dated: July 21, 2026 Hon.

Eric Harmon

Judge

of the Superior Court